

25SMCV05297 25SMCV05297

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-04

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The matter is here for an FSC. The court has plaintiff's exhibits filed on August 3 as well as defendant's witness list and exhibits filed on 8/11. The court also has defendant's trial brief. Defendants filed new FSC materials yesterday.

The court will need to inquire. According to the defense, plaintiff has refused to participate in the meet and confer process. If that is true, plaintiff will be barred from calling any witness other than plaintiff and will be barred from introducing any exhibits. Plaintiff may cross examine any witness called by the defense within the scope of the examination and may rely on any exhibit actually introduced by the defense. If plaintiff has tried to participate, then the court will need to set a new trial date, as the parties are plainly not able to file joint materials.

The court will discuss the first day of trial with the parties.